

JAMES MARATHAS
HINGHAM HOUSING AUTH
80 CITY ST
QUINCY MA 02170

For Registry of Deeds Use Only



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

WPA Form 4B - Order of Resource Area Delineation

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

Provided by MassDEP:

034-1509

MassDEP File Number

ADCP Transaction Number

Hingham

City/Town

A. General Information

Important: When
filling out forms
on the computer,
use only the tab
key to move your
cursor - do not
use the return
key.

From: Hingham
1. Conservation Commission

2. This issuance is for (check one):

- a. ☒ Order of Resource Area Delineation
b. ☐ Amended Order of Resource Area Delineation

3. Applicant:

James
a. First Name
Hingham Housing Authority
c. Organization
80 City Street
d. Mailing Address
Quincy
e. City/Town

Marathas
b. Last Name

MA
f. State

02170
g. Zip Code

4. Property Owner (if different from applicant):

James
a. First Name
Hingham Housing Authority
c. Organization
100 Beal Street
d. Mailing Address
Hingham
e. City/Town

Marathas
b. Last Name

MA
f. State

02043
g. Zip Code

5. Project Location:

100 Beal Street
a. Street Address
55
d. Assessor's Map/Plot Number

Hingham
b. City/Town

02043
c. Zip Code

23
e. Parcel/Lot Number

Latitude and Longitude

6. Dates:

10/16/24
a. Date ANRAD Filed

11/04/24
b. Date Public Hearing Closed

11/7/24
c. Date of Issuance



Bk: 59527 Pg: 273 Page: 1 of 8
Recorded: 12/10/2024 11:09 AM
Agent: John R. Buckley, Jr., Register
Plymouth County Registry of Deeds

BOOK 59527
PAGE 273



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

WPA Form 4B - Order of Resource Area Delineation

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

Provided by MassDEP

034-1509

MassDEP File Number

WPA Form 4B - Order of Resource Area

Hingham

City/Town

A. General Information (cont.)

7. Title and Date (or Revised Date if applicable) of Final Plans and Other Documents:

Hingham Housing Authority 100 Beal Street Map 5B, Lot 23

10/14/24

a. Title

b. Date

c. Title

d. Date

B. Order of Delineation

1. The Conservation Commission has determined the following (check whichever is applicable):

- a. ☒ **Accurate:** The boundaries described on the referenced plan(s) above and in the Abbreviated Notice of Resource Area Delineation are accurately drawn on the following resource area(s):

1. ☒ Bordering Vegetated Wetlands

2. ☒ Other resource area(s), specifically:

a. See attached Findings of Fact

- b. ☐ **Modified:** The boundaries described on the plan(s) referenced above, as modified by the Conservation Commission from the plans contained in the Abbreviated Notice of Resource Area Delineation, were accurately drawn from the following resource area(s):

1. ☐ Bordering Vegetated Wetlands

2. ☐ Other resource area(s), specifically:

3.

- c. ☐ **Inaccurate:** The boundaries described on the referenced plan(s) and in the Abbreviated Notice of Resource Area Delineation were found to be inaccurate and cannot be confirmed for the following resource area(s):

1. ☐ Bordering Vegetated Wetlands

2. ☐ Other resource area(s), specifically:



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

WPA Form 4B - Order of Resource Area Delineation

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

B. Order of Delineation (cont.)

Provided by MassDEP:
034-1509
MassDEP File Number

MassDEP District Office:
Hingham
City/Town

3 ☐ The boundaries were determined to be inaccurate because:

C. Findings

This Order of Resource Area Delineation determines that the boundaries of those resource areas noted above, have been delineated and approved by the Commission and are binding as to all decisions rendered pursuant to the Massachusetts Wetlands Protection Act (M.G.L. c. 131, § 40) and its regulations (310 CMR 10.00). This Order does not, however, determine the boundaries of any resource area or Buffer Zone to any resource area not specifically noted above, regardless of whether such boundaries are contained on the plans attached to this Order or to the Abbreviated Notice of Resource Area Delineation.

This Order must be signed by a majority of the Conservation Commission. The Order must be sent by certified mail (return receipt requested) or hand delivery to the applicant. A copy also must be mailed or hand delivered at the same time to the appropriate DEP Regional Office (see <https://www.mass.gov/service/details/massdep-regional-offices-by-community>).

D. Appeals

The applicant, the owner, any person aggrieved by this Order, any owner of land abutting the land subject to this Order or any ten residents of the city or town in which such land is located, are hereby notified of their right to request the appropriate DEP Regional Office to issue a Superseding Order of Resource Area Delineation. When requested to issue a Superseding Order of Resource Area Delineation, the Department's review is limited to the objections to the resource area delineation(s) stated in the appeal request. The request must be made by certified mail or hand delivery to the Department, with the appropriate filing fee and a completed Request for Departmental Action Fee Transmittal Form, as provided in 310 CMR 10.03(7) within ten business days from the date of issuance of this Order. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.

Any appellants seeking to appeal the Department's Superseding Order of Resource Area Delineation will be required to demonstrate prior participation in the review of this project. Previous participation in the permit proceeding means the submission of written information to the Conservation Commission prior to the close of the public hearing, requesting a Superseding Order or Determination, or providing written information to the Department prior to issuance of a Superseding Order or Determination.

The request shall state clearly and concisely the objections to the Order which is being appealed and how the Order does not contribute to the protection of the interests identified in the Massachusetts Wetlands Protection Act, (M.G.L. c. 131, § 40) and is inconsistent with the wetlands regulations (310 CMR 10.00). To the extent that the Order is based on a municipal bylaw or ordinance, and not on the Massachusetts Wetlands Protection Act or its regulations, the Department of Environmental Protection has no jurisdiction.

Bk: 59527 Pg: 276

Document Envelope ID: 8C7A9306-0818-496A-9911-F887CC1D2DFB



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

**WPA Form 4B - Order of Resource Area
Delineation**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

E. Signatures

Please indicate the number of members who will sign this form.

Provided by MassDEP:

034-1509

MassDEP File Number

eDEP Transaction Number

HB3040M

City/Town

Date of Issuance
11/7/24

Number of Signers
4

See Book 58888 Pg. 7 for Certificate of Vote on Electronic Signatures

Signatures

Signed by:

Carolyn J. Nielsen

Signature of Conservation Commission Member

Laurie Freeman

Signature of Conservation Commission Member

Maria Villanueva

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Signature of Conservation Commission Member

Thomas S. Kelly

Carolyn J. Nielsen

Printed Name

Laurie Freeman

Printed Name

Maria Villanueva

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

Printed Name

Thomas S. Kelly

This Order is valid for three years from the date of issuance.

If this Order constitutes an Amended Order of Resource Area Delineation, this Order does not extend the issuance date of the original Final Order, which expires on _____ unless extended in writing by the issuing authority.

This Order is issued to the applicant and the property owner (if different) as follows:

2. ☐ By hand delivery on _____

a. Date

3. ☒ By certified mail, return receipt requested on _____

a. Date

11/7/24

Bk: 59527 Pg: 277



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

DEP File Number:

**Request for Departmental Action Fee
Transmittal Form**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

A. Request Information

1. Location of Project

a. Street Address _____ b. City/Town, Zip _____
c. Check number _____ d. Fee amount _____

2. Person or party making request (If appropriate, name the citizen group's representative):

Name _____
Mailing Address _____
City/Town _____ State _____ Zip Code _____
Phone Number _____ Fax Number (if applicable) _____

3. Applicant (as shown on Determination of Applicability (Form 4B), Order of Resource Area Delineation (Form 4B), Order of Conditions (Form 5), Superseding Order of Conditions (Form 5A), or Notice of Non-Significance (Form 6)):

Name _____
Mailing Address _____
City/Town _____ State _____ Zip Code _____
Phone Number _____ Fax Number (if applicable) _____

4. DEP File Number: _____

B. Instructions

1. When the Departmental action request is for (check one):

- ☐ Superseding Order of Conditions – Fee: \$120.00 (single family house projects) or \$245 (all other projects)
☐ Superseding Determination of Applicability – Fee: \$120
☐ Superseding Order of Resource Area Delineation – Fee: \$120

Send this form and check fee monies to: the Commissioner, WPA, Massachusetts, 60

Department of Environmental Protection
Box 4062
Boston, MA 02211



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

DEP File Number:

**Request for Departmental Action Fee
Transmittal Form**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

B. Instructions (cont.)

2. On a separate sheet attached to this form, state clearly and concisely the objections to the Determination or Order which is being appealed. To the extent that the Determination or Order is based on a municipal bylaw, and not on the Massachusetts Wetlands Protection Act or regulations, the Department has no appellate jurisdiction.
3. Send a *copy* of this form and a *copy* of the check or money order with the Request for a Superseding Determination or Order by certified mail or hand delivery to the appropriate DEP Regional Office (see <https://www.mass.gov/service-details/massdep-regional-offices-by-county>).
4. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.

UNOFFICIAL COPY



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

WPA Form 4B - Order of Resource Area Delineation

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

Provided by MassDEP

MassDEP File Number _____

sDEP Transaction Number _____

City/Town _____

Recording Information

Prior to commencement of work, this Order of Resource Area Delineation must be recorded in the Registry of Deeds or the Land Court for the district in which the land is located, within the chain of title of the affected property. In the case of recorded land, the Final Order shall also be noted in the Registry's Grantor Index under the name of the owner of the land subject to the Order. In the case of registered land, this Order shall also be noted on the Land Court Certificate of Title of the owner of the land subject to the Order of Resource Area Delineation. The recording information on this page shall be submitted to the Conservation Commission listed below.

Conservation Commission _____

Detach on dotted line, have stamped by the Registry of Deeds and submit to the Conservation Commission.

To:

Conservation Commission _____

Please be advised that the Order of Resource Area Delineation for the Project at:

Project Location: _____

MassDEP File Number _____

Has been recorded in the Registry of Deeds of:

County _____

Book _____

Page _____

File _____

Property Owner _____

and has been noted in the chain of title of the affected property in:

Book _____

Page _____

In accordance with the Order of Resource Area Delineation issued on:

Date _____

If recorded land, the instrument number identifying this transaction is:

Instrument Number _____

If registered land, the document number identifying this transaction is:

Document Number _____

Signature of Applicant _____



TOWN OF HINGHAM
CONSERVATION COMMISSION

FINDINGS OF FACT

100 BEAL STREET
ORDER OF RESOURCE AREA DELINEATION (ORAD)
DEP File No. 034-1509

Based on review of the submitted documentation in the Abbreviated Notice of Resource Area Delineation prepared by Lucas Environmental and field observations made by Conservation staff, the Conservation Commission makes the findings:

1. The boundary of Inland Bank/Mean Annual High Water (MAHW) line as delineated by flags BFI-1 to BFI-16 and BFI-100 to BFI-123 (with associated Riverbank Area) is confirmed;
2. The boundary of Bordering Vegetated Wetland as delineated by flags WFA-1 to WFA-100 and WFB-1 to WFB-23 is confirmed;
3. The off-site portion of the Bordering Vegetated Wetland as delineated by flags WFE-1 to WFE-4 is not confirmed by this ORAD however the associated 100-foot Buffer Zone extending onto the property is considered accurate;
4. The off-site Isolated Vegetated Wetland C as delineated by flags WFC-1 to WFC-6 is not confirmed by this ORAD however the associated 100-foot Buffer Zone extending onto the property is considered accurate;
5. The Isolated Vegetated Wetland D as delineated by flags WFD-1 to WFD-6 is found to be jurisdictional under the Hingham Wetlands Protection Bylaw only and the boundary is confirmed;
6. A Certified Vernal Pool (CVP #3588) is mapped in the southern eastern corner of the subject property however the boundary has not been confirmed by this ORAD.